

ALITO, J., dissenting

*Constitutional claims.* Finally, despite the important differences between the Fourteenth Amendment and Title VII, the Court’s decision may exert a gravitational pull in constitutional cases. Under our precedents, the Equal Protection Clause prohibits sex-based discrimination unless a “heightened” standard of review is met. *Sessions v. Morales-Santana*, 582 U. S. 47, 58 (2017); *United States v. Virginia*, 518 U. S. 515, 532–534 (1996). By equating discrimination because of sexual orientation or gender identity with discrimination because of sex, the Court’s decision will be cited as a ground for subjecting all three forms of discrimination to the same exacting standard of review.

Under this logic, today’s decision may have effects that extend well beyond the domain of federal antidiscrimination statutes. This potential is illustrated by pending and recent lower court cases in which transgender individuals have challenged a variety of federal, state, and local laws and policies on constitutional grounds. See, *e.g.*, Complaint in *Hecox*, No. 1: 20–CV–00184 (state law prohibiting transgender students from competing in school sports in accordance with their gender identity); Second Amended Complaint in *Karnoski v. Trump*, No. 2:17–cv–01297 (WD Wash., July 31, 2019) (military’s ban on transgender members); *Kadel v. Folwell*, 446 F. Supp. 3d 1, 18 (MDNC 2020) (state health plan’s exclusion of coverage for sex reassignment procedures); Complaint in *Gore v. Lee*, No. 3:19–cv–00328 (MD Tenn., Mar. 3, 2020) (change of gender on birth certificates); Brief for Appellee in *Grimm v. Gloucester Cty. School Bd.*, No. 19–1952 (CA4, Nov. 18, 2019) (transgender student forced to use gender-neutral bathrooms at school); Complaint in *Corbitt v. Taylor*, No. 2:18–cv–00091 (MD Ala., July 25, 2018) (change of gender on driver’s licenses); *Whitaker*, 858 F. 3d, at 1054 (school policy requiring students to use the bathroom that corresponds to the sex on birth certificate); *Keohane v. Florida Dept. of Corrections Secretary*, 952 F. 3d 1257, 1262–1265 (CA11 2020) (transgender prisoner denied hormone therapy